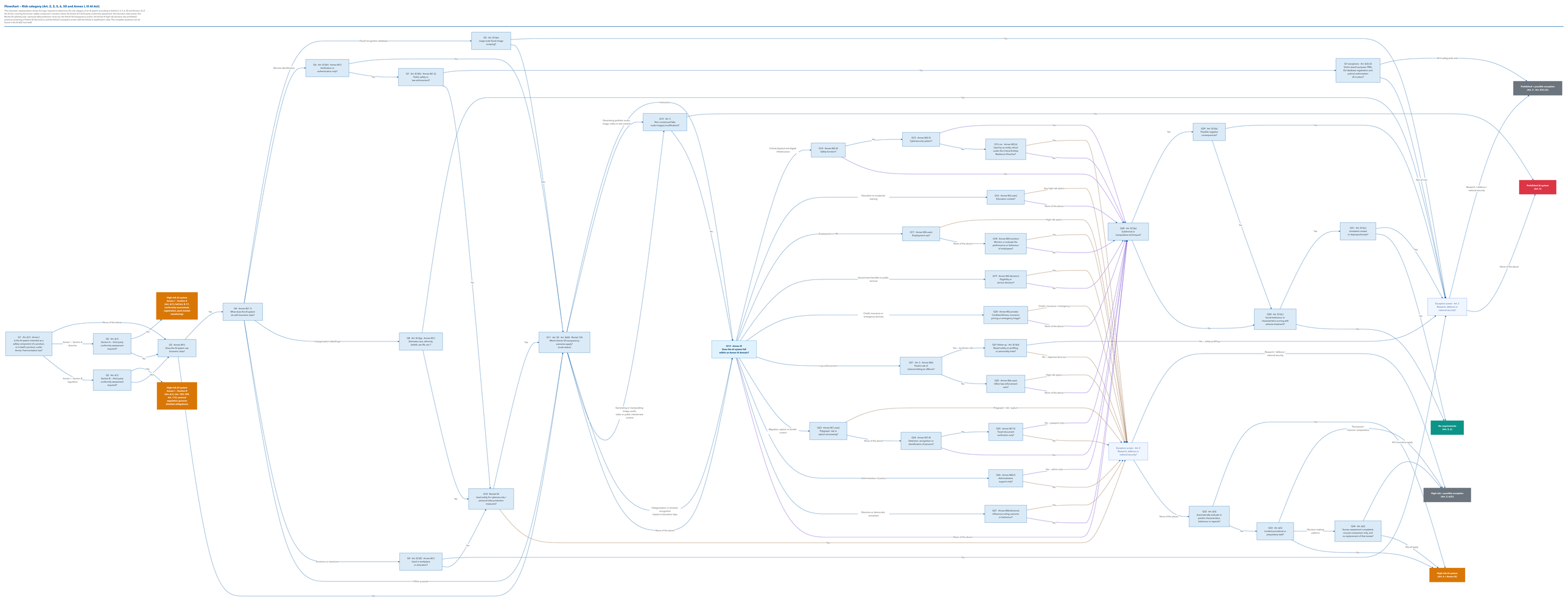

Flowchart – Risk category (Art. 2, 3, 5, 6, 50 and Annex I, III AI Act)

This schematic representation shows the logic required to determine the risk category of an AI system according to Article 2, 3, 5, 6, 50 and Annex I, III of the AI Act, covering the Annex I safety-component / product check, the Article 6(1) third-party conformity assessment, the biometric-data screen, the Recital 54 cybersecurity / personal-data-protection carve-out, the Article 50 transparency screen, the Annex III high-risk domains, the prohibited-practices screening of Article 5(1)(a) and (c), and the Article 2 exception screen with the Article 6 classification rules. The complete questions can be found in the AI AQT tool itself.

Q1 · Art. 6(1) · Annex I
Is the AI system intended as a safety component of a product, or is itself a product, under Annex I harmonisation law?
Annex I – Section A directive
Annex I – Section B regulation
None of the below
Q2 · Art. 6(1)
Section A – third-party conformity assessment required?
Q2 · Art. 6(1)
Section B – third-party conformity assessment required?
Yes
No
High-risk AI system
Annex I – Section A
(Art. 6(1); full Art. 8-17, conformity assessment, registration, post-market monitoring)
High-risk AI system
Annex I – Section B
(Art. 6(1), Art. 102-109, Art. 112; sectoral regulation governs detailed obligations)
Q3 · Annex III(1)
Does the AI system use biometric data?
Q4 · Annex III(1.1)
What does the AI system do with biometric data?
Facial-recognition database
Remote identification
Categorisation (labelling)
Emotions or intentions
Other purpose
Q5 · Art. 5(1)(e)
Large-scale facial-image scraping?
Q6 · Art. 5(1)(h) · Annex III(1)
Verification or authentication only?
Q7 · Art. 5(1)(h) · Annex III(1.2)
Public safety or law enforcement?
Q7-exceptions · Art. 5(2)-(3)
Victim search purpose, FRIA, EU-database registration and judicial authorisation all in place?
All 4 safeguards met
Not all met
Q8 · Art. 5(1)(g) · Annex III(1)
Estimates race, ethnicity, beliefs, sex life, etc.?
Q9 · Art. 5(1)(f) · Annex III(1)
Used in workplace or education?
Q10 · Recital 54
Used solely for cybersecurity / personal-data-protection measures?
Q11 · Art. 50 · Art. 3(60) · Recital 134
Which Article 50 transparency scenarios apply?
(multi-select)
Interaction
Generating synthetic audio, image, video or text content
Generating or manipulating image, audio, video or public-interest text content
Categorization or emotion recognition based on biometric data
None of the above
Q12 · Art. 5
Non-consensual fake nude imagery (nudification)?
Q13 · Annex III
Does the AI system fall within an Annex III domain?
Critical physical and digital infrastructure
Q14 · Annex III(2.4)
Safety function?
Q15 · Annex III(2.5)
Cybersecurity system?
Q15-cer · Annex III(2.6)
Used by an entity critical under the Critical Entities Resilience Directive?
Education or vocational training
Q16 · Annex III(3.uses)
Education context?
Any high-risk option
None of the above
Employment or HR
Q17 · Annex III(4.uses)
Employment use?
High-risk option
Q18 · Annex III(4.monitor)
Monitor or evaluate the performance or behaviour of employees?
Government benefits or public services
Q19 · Annex III(5.decision)
Eligibility or service decision?
Credit, insurance or emergency services
Q20 · Annex III(5.private)
Creditworthiness, insurance pricing or emergency triage?
Credit / insurance / emergency
Law enforcement
Q21 · Art. 5 · Annex III(6)
Predict risk of (re)committing an offence?
Yes – recidivism risk
Q21-follow-up · Art. 5(1)(d)
Based solely on profiling or personality traits?
Yes – solely profiling
No – objective facts too
Q22 · Annex III(6.uses)
Other law-enforcement uses?
Migration, asylum or border control
Q23 · Annex III(7.uses)
Polygraph, risk or asylum processing?
Polygraph / risk / asylum
Q24 · Annex III(7.4)
Detection, recognition or identification of persons?
Q25 · Annex III(7.5)
Travel-document verification only?
Yes – passport only
Administration of justice
Q26 · Annex III(8.2)
Administrative support only?
Yes – admin only
Elections or democratic processes
Q27 · Annex III(8.elections)
Influences voting outcome or behaviour?
Exception screen · Art. 2
Research, defence or national security?
Q28 · Art. 5(1)(a)
Subliminal or manipulative techniques?
Q29 · Art. 5(1)(a)
Possible negative consequences?
Q30 · Art. 5(1)(c)
Social-behaviour or characteristics scoring with adverse treatment?
Q31 · Art. 5(1)(c)
Unrelated context or disproportionate?
Exception screen · Art. 2
Research, defence or national security?
Research / defence / national security
Prohibited + possible exception
(Art. 2 · Art. 5(2)-(3))
Prohibited AI system
(Art. 5)
No requirements
(Art. 5, 6)
Q32 · Art. 6(3)
Automatically evaluate or predict characteristics, behaviour or aspects?
Q33 · Art. 6(3)
Limited procedural or preparatory task?
Decision-making patterns
Q34 · Art. 6(3)
Human assessment completed, ex-post comparison only, and no replacement of that review?
Procedural / improve / preparatory
All 3 scenarios apply
Not all apply
High-risk + possible exception
(Art. 2, 6(3))
High-risk AI system
(Art. 6 + Annex III)